

FINAL EVIDENTIARY NOTICE, OBJECTION AND REQUEST FOR FORMAL INVESTIGATION

Date: 17 September 2026

From:

Dr Richard William McLean (Barran Dodger)

[Your current postal address, if required]

[Your email address]

[Your telephone number]

To:

Ablepoint Australia

Attention: Brett Butler / Rachel K C / Relevant Manager or Authorised Decision-Maker

[Official email address]

[Postal address]

Copies: Relevant organisations, agencies, professionals, oversight bodies and decision-makers as appropriate.

Response deadline: 30 September 2026

FORMAL NOTICE

This is a formal evidentiary notice, express objection, request for preservation of records, and request for formal review and investigation.

I request written acknowledgment of receipt of this notice and a substantive response by 30 September 2026.

Where a different statutory, contractual or procedural timeframe applies, I request that Ablepoint identify that timeframe and the basis upon which it applies.

1. PURPOSE OF THIS NOTICE

I provide this consolidated notice to place on record my circumstances, my objections to the treatment I have experienced, the documentary history preceding and surrounding my involvement with Ablepoint Australia, and the evidence that I have preserved concerning institutional decision-making, information transfer, financial consequences, alleged entrapment, alleged surveillance and V2K/audio harassment, and the conduct of individuals whom I identify as perpetrators.

I am not asking Ablepoint or any other recipient to accept every allegation, interpretation or conclusion I have expressed as an established fact.

I am requiring the underlying evidence to be examined.

The central evidentiary question is:

What information existed before Ablepoint became involved; where did that information originate; how was it transmitted; what information did Ablepoint receive; what did Ablepoint independently verify; what decisions were subsequently made; what information was relied upon; and what consequences followed?

2. THE PRE-EXISTING HISTORY

The documentary record demonstrates that a substantial institutional history existed before Ablepoint's involvement with me.

That history includes government, regulatory, tribunal, professional, provider, corporate, complaint, FOI, administrative and other records extending across multiple years.

The existence of those records is not dependent upon whether Ablepoint agrees with my interpretation of them.

A disputed interpretation does not erase the underlying document.

Nor does a later institutional characterisation automatically convert an earlier allegation into an established fact.

Equally, repeated institutional statements do not become independent corroboration merely because they appear in multiple files.

The evidentiary task is therefore to trace the information back to its earliest identifiable source.

3. MY EXPRESS OBJECTION

I expressly object to what I contend has been my entrapment, financial abuse, V2K/ audio harassment, and the alleged deliberate alignment of Ablepoint with individuals whom I identify as perpetrators of conduct against me.

I further object to what I contend has been Ablepoint's failure to acknowledge its own role, decisions, omissions, communications and participation in the circumstances I have documented.

I do not accept that Ablepoint can treat its own conduct as irrelevant while characterising the consequences experienced by me as though they arose independently of Ablepoint's actions.

I allege that these circumstances form part of a broader pattern in which information, institutional responses and restrictions have operated to silence my testimony, diminish my credibility, or cause me to withdraw from asserting my rights and documenting my experience.

Where I use the term "mandate", I use it as an allegation and investigative proposition requiring documentary examination, not as a proposition that recipients are required to accept without scrutiny.

4. I WILL NOT SHRINK MY TESTIMONY

I will not shrink myself, suppress my testimony, or diminish my work merely to make my circumstances more comfortable for an organisation or institution.

My testimony is part of the evidentiary record.

That does not mean that every proposition contained within my testimony must automatically be accepted.

It means that my testimony should not be erased merely because an institution disputes its interpretation.

The proper response to disputed testimony is examination, corroboration, contradiction and investigation.

It is not disappearance.

5. V2K AND AUDIO HARASSMENT

I specifically object to any treatment of my reports of V2K/audio harassment that effectively denies the reports by refusing to acknowledge that they were made.

I am not asking Ablepoint to endorse a particular explanation for the source, mechanism

or perpetrator of those experiences.

I am asking Ablepoint to accurately record that I have reported them and to distinguish:

- **the fact that I made the report;**
- **the content of the report;**
- **evidence independently corroborating or contradicting it;**
- **possible explanations considered; and**
- **any conclusion reached concerning source or mechanism.**

The absence of an accepted explanation cannot properly be converted into an assertion that the underlying report never existed.

6. THE ALLEGED ALIGNMENT WITH PERPETRATORS

I object to what I perceive and allege to be deliberate alignment between Ablepoint and persons whom I identify as perpetrators.

This allegation should be tested against the documentary record.

The relevant questions include:

- **What information about me was provided to Ablepoint?**
- **Who provided it?**
- **What information did Ablepoint obtain independently?**
- **Did Ablepoint communicate with individuals or organisations I had identified as involved in prior harm?**
- **What representations were made about me?**
- **What records were relied upon?**
- **Were contradictory records considered?**
- **Were my own explanations sought and recorded?**
- **Were decisions predetermined by information received before Ablepoint knew me?**
- **Were restrictions or adverse decisions based upon information that had never been independently verified?**

These questions are capable of documentary investigation.

7. THE POSSIBILITY OF A PRE-EXISTING ADMINISTRATIVE METHOD

One of the most important questions raised by the chronology is whether an established administrative method, classification, narrative or information pathway existed before Ablepoint became involved with me and was subsequently carried forward.

This is not presented as an established conspiracy.

It is an evidentiary hypothesis requiring testing.

If the same unusual information, terminology, characterisation, error or omission appears across institutions, the proper question is not automatically "conspiracy."

The proper question is:

Where did the information originate, how did it travel, and why was it subsequently relied upon?

If there is a documented transmission pathway, it should be identified.

If there is no identifiable pathway, that should also be recorded.

An unexplained information pathway is not proof of surveillance.

But neither should unexplained convergence simply be ignored where documentary evidence permits further investigation.

8. INFORMATION LINEAGE

Every material adverse proposition concerning me should be capable of being traced through an evidentiary chain:

Original proposition → earliest source → author → date → evidence relied upon → recipient → transmission → later reproduction → independent verification → decision → consequence.

Where the source is unknown, it should be identified as unknown.

Where information was merely repeated, it should be identified as repeated.

Where information was independently established, the independent evidence should be identified.

Where evidence conflicts, the conflict should be preserved rather than resolved merely by institutional preference.

9. ABLEPOINT'S RECORDS

I request preservation and review of all records relevant to these matters, including:

- **referrals;**
- **intake records;**
- **assessments;**
- **case notes;**
- **incident reports;**
- **emails;**
- **attachments;**
- **internal communications;**
- **communications with previous providers;**
- **communications with government agencies;**
- **communications concerning guardianship or financial management;**
- **risk assessments;**
- **behavioural or professional characterisations;**
- **accommodation records;**
- **restrictions or decisions affecting me;**
- **records identifying the reasons for those decisions;**
- **information received about my history;**
- **records identifying the source of that information;**
- **records showing whether information was independently verified;**
- **records concerning communications with persons whom I had identified as perpetrators; and**
- **records concerning complaints, allegations, police matters or other information relied upon in decisions concerning me.**

10. FORMER RELATIONSHIP AND ALLEGED FABRICATION OF INFORMATION

I also place on record my allegations concerning my former relationship, the publication attributed to the Herald Sun, and information I have described concerning an alleged payment or inducement intended to procure or encourage the fabrication of a report.

I do not require Ablepoint to accept those allegations as proven.

I require the relevant records, communications, reports and source material to be identified, preserved and independently examined where they have been relied upon in forming decisions or characterisations concerning me.

Where I have stated that police information was relevant to these matters, that statement should be treated as my account unless and until the underlying police material is independently examined.

11. FINANCIAL CONSEQUENCES

I expressly object to what I contend has constituted financial abuse and financial detriment.

The financial consequences should be examined separately from assumptions concerning motive.

The documentary analysis should identify:

what expenditure occurred; what payments were withheld, restricted or affected; what entitlement was asserted; what decision caused or contributed to the financial consequence; who made the decision; what information was available to that decision-maker; what reason was recorded; what alternative explanations exist; and what evidence establishes or contradicts causation.

12. DOCUMENTARY CONTRADICTIONS

The archive contains examples where later institutional records differ from earlier search outcomes or descriptions.

For example, the PM&C FOI history includes an earlier search outcome followed by additional information and a later revised decision identifying historical documents.

That does not, by itself, establish deliberate concealment.

It does establish a documentary discrepancy requiring explanation.

The same standard should apply to all other disputed records.

13. HISTORY CANNOT BE ERASED BY LATER CHARACTERISATION

A later administrative characterisation does not extinguish the existence of an earlier contemporaneous record.

If a later record says something different from an earlier record, the evidentiary question becomes:

What changed, when did it change, who changed it, why did it change, and what evidence justified the change?

That is a question of provenance.

It is not resolved simply by giving greater institutional status to the later document.

14. NO DEMAND THAT MY ALLEGATIONS BE BELIEVED

I repeat that I am not asking recipients to believe every allegation I have made.

I am asking recipients to apply the same evidentiary standard to institutional accounts that they would apply to my testimony.

If my allegations are unsupported, identify the evidence showing that.

If they are contradicted, identify the contradiction.

If they are corroborated, preserve the corroboration.

If the evidence is inconclusive, record it as inconclusive.

If the source of information is unknown, record it as unknown.

That is what an impartial evidentiary process requires.

15. EVIDENCE PRESERVATION

I formally request preservation of all potentially relevant records.

This includes electronic communications, emails, attachments, case-management records, referral information, assessments, notes, recordings where lawfully held, metadata, decision records, internal correspondence, external correspondence, complaints, incident reports and communications with third parties.

No relevant record should be altered, destroyed, overwritten or discarded merely because its evidentiary significance has not yet been determined.

16. REQUEST FOR FORMAL REVIEW AND INVESTIGATION

I request that these matters be subjected to a formal documentary review addressing:

EVIDENCE PRESERVATION

→ PROVENANCE REVIEW

→ INFORMATION-LINEAGE AUDIT

→ DECISION REVIEW

→ CONTRADICTION REVIEW

→ CAUSATION ASSESSMENT

→ INDEPENDENT INVESTIGATION WHERE WARRANTED

→ APPROPRIATE LEGAL OR REGULATORY REFERRAL WHERE REQUIRED.

The purpose should be to establish what the evidence actually demonstrates, rather than to predetermine either my allegations or the institutional response.

17. RESPONSE REQUIRED BY 30 SEPTEMBER 2026

I request a substantive written response no later than 30 September 2026.

The response should identify, to the extent lawfully available:

- 1. What records have been preserved;**
- 2. What information concerning me was received from other organisations or individuals;**
- 3. The identified source of that information;**
- 4. What information was independently verified;**
- 5. What decisions were made on the basis of that information;**
- 6. Who made those decisions;**
- 7. What reasons were recorded;**
- 8. What contradictory or exculpatory material was considered;**
- 9. Whether the information was independently reviewed;**
- 10. Whether the matters raised in this notice will be formally investigated; and**
- 11. If investigation or review is declined, the precise evidentiary, procedural or legal basis for that decision.**

If additional time is genuinely required, I request that this be communicated before the deadline, together with the reason for the extension and the proposed date for substantive response.

FINAL STATEMENT

I object to being placed in a position where I must choose between silence and access to support, between surrendering my testimony and being treated as credible, or between making myself smaller and having my history acknowledged.

I will not erase my testimony to accommodate an institutional narrative.

I will not shrink for Ablepoint's comfort.

I will continue to preserve the documentary record and present it for scrutiny.

At the same time, I accept that scrutiny must apply in both directions.

The question is not whether my allegations are believed.

The question is what the documentary record establishes when every material proposition is traced to its source, every transmission is identified, every decision is examined against the information actually available at the time, and contradictory evidence is preserved rather than erased.

Ablepoint does not have to accept my conclusions.

It does, however, need to acknowledge the history sufficiently to permit that history to be examined.

Where my reports of V2K/audio harassment, financial abuse, entrapment, alleged perpetrator alignment, institutional treatment and silencing are relevant to decisions concerning me, those reports should not be silently converted into non-events by omission.

Failure to acknowledge the existence of a reported experience is not the same thing as disproving it.

Failure to identify the source of information is not the same thing as establishing its reliability.

Repetition is not automatically independent corroboration.

And a later characterisation cannot simply erase the earlier documentary record.

The appropriate course is preservation, provenance, examination, contradiction testing and, where the evidence warrants it, investigation.

The record should speak for itself.

The evidence should be preserved.

The contradictions should remain visible.

The sources should be identified.

The decisions should be accountable.

And where the evidence warrants it, the appropriate investigation should follow.

Signed,

Dr Richard William McLean

Barran Dodger

17 September 2026

Primary documentary archive:

[Barran Dodger Archive — Primary Mirror](#)

Public finding aid:

[Archive Finding Aid](#)